

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 7-31-26
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***WT Capital Lender Services v. Pinzon, et al.***
Superior Court Case No. 25CECG01310

Hearing Date: August 4, 2026 (Dept. 502)

Motion: for Disbursement of Interpleader Funds

Tentative Ruling:

To deny without prejudice.

Explanation:

As provided in the court's previous order following defendant David Moriyana's last motion for disbursement, the matter has not reached a procedural posture suitable for disbursement to a claimant. (See the Minute Order filed on Mar. 19, 2026.)

"Nothing in [Civil Code, section 2924j] restricts the ability of a trustee to file an interpleader action in order to resolve a dispute about the proceeds of a trustee's sale. Once an interpleader action has been filed, thereafter the provisions of this section do not apply." (Civ. Code, § 2924j, subd. (e).)

"Any person, firm, corporation, association or other entity against whom double or multiple claims are made, or may be made, by two or more persons which are such that they may give rise to double or multiple liability, may bring an action against the claimants to compel them to interplead and litigate their several claims." (Code Civ. Proc., § 386, subd. (b).) " ' "In an interpleader action, the court initially determines the right of the plaintiff to interplead the funds; if that right is sustained, an interlocutory decree is entered which requires the defendants to interplead and litigate their claims to the funds." [Citation.] Then, in the second phase of an interpleader proceeding, the trial court also has "the power under [Code of Civil Procedure] section 386 to adjudicate the issues raised by the interpleader action including: the alleged existence of conflicting claims regarding the interpleaded funds; plaintiffs' alleged position as a disinterested mere stakeholder; and ultimately the disposition of the interpleaded funds after deducting plaintiffs' attorney fees." [Citation.]' " (*Farmers New World Life Ins. Co. v. Rees* (2013) 219 Cal.App.4th 307, 315 citing (*Shopoff & Cavallo LLP v. Hyon* 167 Cal.App.4th 1489, 1513–1514.)

In other words, an "interpleader proceeding is traditionally viewed as two lawsuits in one. The first dispute is between the stakeholder and the claimants to determine the right to interplead the funds. The second dispute to be resolved is who is to receive the interpleaded funds..." (*Dial 800 v. Fesbinder* (2004) 118 Cal.App.4th 32, 43.)

Just as the moving party suggests, this matter has reached the procedural posture wherein claimants must litigate to resolve the disposition of the interpleaded funds. The

